

Sanjana Bharti @ Rinki Kumari vs Amit Kumar on 29 August, 2024

Author: Rajiv Roy

Bench: Rajiv Roy

IN THE HIGH COURT OF JUDICATURE AT PATNA
Miscellaneous Jurisdiction Case No.628 of 2023

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Sanjana Bharti @ Rinki Kumari

Versus

Amit Kumar

... .. Peti

... .. Opposite Party/s

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Appearance :

For the Petitioner/s : Mr. Amit Kumar Anand, Adv.

For the Opposite Party/s : Mr.

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CORAM: HONOURABLE MR. JUSTICE RAJIV ROY

ORAL ORDER

2 29-08-2024

Heard the parties.

2. The present petition has been preferred for transferring of Matrimonial Case No. 121 of 2022 under Section 11 (7) of the Hindu Marriage Act for (Null Marriage) filed by the petitioner's husband (Opposite Party) on 02.08.2022 from the Court of learned Principal Judge, Family Court, Purnea, the Matrimonial Case transfer to the Court of learned Principal Judge, Family court, Khagaria as petitioner is residing at Khagaria in her paternal house due to obstruction raised by the opposite party and distance from Khagaria to Purnea is about 160 km which is not possible for the petitioner to attend the court at Purnea.

3. Issue notice to the sole opposite party through both processes i.e. ordinary as well as registered cover with A/D for which requisites etc. must be filed within a period of one week Patna High Court MJC No.628 of 2023(2) dt.29-08-2024 failing which the application shall stand rejected without further reference to the Bench.

4. In case, the order passed is not complied and the matter accordingly stands dismissed, subsequently, the same be posted under the heading 'To be Mentioned'.

5. List this case on 17.10.2024.

6. In the meantime, the further proceeding of the Matrimonial case no. 121 of 2022 pending in the court of Principle Judge, Family Court, Purnea shall remain stayed.

(Rajiv Roy, J) Vijay Singh/-

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